

South Dakota Real Estate Power of Attorney

Pursuant to South Dakota Codified Laws § 59-3-12 & § 44-8-2

I, _____ [Full Name], of _____
[Street Address] in the City of _____, State of _____
(the "Principal") hereby appoint _____ [Full Name], of _____
_____ [Street Address] in the City of _____,
State of _____ (the "Agent") to act on my behalf for the purpose set forth in
Article 1 below (**Initial** and **Check** the Applicable Types):

ARTICLE 1. ASSIGNMENT OF AUTHORITY

_____ ☐ - **Management of Real Estate:** My agent is authorized to act on my behalf for
the purpose of managing the premises located at _____
_____ and with a legal description of _____.
My agent is authorized to perform all acts related to maintaining the property such as but
not limited to: making repairs (with reimbursement), approving sub-contractors for work,
negotiating rents, signing lease/sublease agreements, evicting tenants and any other
representation as needed for day-to-day management.

_____ ☐ - **Sale of Real Estate:** My agent is authorized to act in my behalf for the
purpose of selling the lands and premises located at _____
_____ and with a legal description of _____.
My agent is authorized to perform any and all acts related to such sale, including, but not
limited to, executing, modifying and delivering any and all documents necessary to
complete the transaction as well as accepting the closing proceeds for deposit into my
account which has been previously disclosed to my agent.

_____ ☐ - **Purchase of Real Estate:** My agent is authorized to act in my behalf for the
purpose of purchasing the lands and premises located at _____
_____ and with a legal description of _____.
My agent is authorized to perform any and all acts related to such purchase, including,
but not limited to the financing and mortgaging of the property. My agent is authorized to
execute, modify and deliver any documents necessary to complete the financing and
purchase of the property as well as to withdraw and disburse funds necessary for the

closing from my account which I have previously disclosed to my agent.

_____ ☐ - **Refinancing:** My agent is authorized to act in my behalf for the purpose of refinancing my debts, including, but not limited to any debts secured by a mortgage on the lands and premises located at _____ and with a legal description of _____. My agent is authorized to perform any and all acts related to such refinancing, including but not limited to, modifying, executing and delivering any and all documents necessary to complete the refinancing as well as to withdraw and disburse funds necessary to complete the refinancing from my account which I have previously disclosed to my agent.

ARTICLE 2. DURABLE POWER OF ATTORNEY

This power of attorney shall not be affected by the Principal's subsequent disability or incapacity unless otherwise stated in Article 3(b).

ARTICLE 3. TERM

(Initial and Check the Applicable Term):

- a. _____ ☐ - This power of attorney is effective as of the date hereof and shall terminate upon revocation or automatically on the ____ day of _____, 20__.
- b. _____ ☐ - (**Non-Durable Option**) This power of attorney is effective as of the date hereof and shall terminate upon my incapacity, or death, or revocation.
- c. _____ ☐ - This power of attorney is effective as of the date hereof and shall terminate upon my death or revocation.

ARTICLE 4. RATIFICATION

I, the Principal, grant to my Agent full power and authority to perform all acts on my behalf as I could do if personally present, hereby ratifying and confirming all that my Agent may do pursuant to this power.

ARTICLE 5. GOVERNING LAW

This Note shall be governed by, and construed in accordance with, the laws of the State

of South Dakota.

ARTICLE 6. REVOCATION

I, the Principal, hereby revoke any existing powers of attorney that may have previously been granted by me relative to the above-described property.

In witness whereof, I have executed this instrument this ____ day of _____, 20__.

Principal's Signature: _____

Printed Name: _____

Agent's Signature: _____

Printed Name: _____

Affirmation by Witness 1

I, _____, witnessed the execution of this Power of Attorney by the Principal, and I affirm that the Principal appeared to me to be of sound mind, was not under duress, and the Principal affirmed to me that he/she was aware of the nature of this Power of Attorney and signed it freely and voluntarily.

Witness 1 Signature: _____

Printed Name: _____

Affirmation by Witness 2

I, _____, witnessed the execution of this Power of Attorney by the Principal, and I affirm that the Principal appeared to me to be of sound mind, was not under duress, and the Principal affirmed to me that he/she was aware of the nature of this Power of Attorney and signed it freely and voluntarily.

Witness 2 Signature: _____

Printed Name: _____

NOTARY ACKNOWLEDGMENT

STATE OF _____
_____ County, ss.

On this ____ day of _____, 20____, before me appeared _____,
as the Principal who proved to me through government issued photo identification to be
the above-named person, in my presence executed foregoing instrument and
acknowledged that (s)he executed the same as his/her free act and deed.

Notary Public

Printed Name: _____ My commission expires: _____

Acceptance by Agent

The undersigned Agent acknowledges and executes this Power of Attorney, and
by such execution does hereby affirm that I: (A) accept the appointment as agent; (B)
understand the duties under the Power of Attorney and under the law.

Agent's Signature: _____

Printed Name: _____